

26STCV11395 26STCV11395

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Division: Civil Law and Motion
Department: 506
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Case Number: 26STCV11395 Hearing Date: September 17, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

BRENT WEBBER,

Plaintiff,

vs.

FITNESS INTERNATIONAL, LLC,

Defendant.

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CASE NO.: 26STCV11395

[TENTATIVE] ORDER GRANTING MOTION TO COMPEL
ARBITRATION

Dept. 506

8:30 a.m.

September 17, 2026

On April 8, 2026, Plaintiff Brent Webber (proceeding in
pro per) filed this action against Defendant Fitness International, LLC. Plaintiff alleges that a third party “struck Plaintiff
from the side and chest” at Defendant’s gym.
(Complaint ¶ 22.)

On June 22, 2026, Defendant filed a motion
to compel arbitration.

DISCUSSION

When seeking to compel arbitration
of a plaintiff’s claims, the defendant must allege the existence of an agreement
to arbitrate. (Condee v. Longwood Management
Corp. (2001) 88 Cal.App.4th 215, 219.)

The burden then shifts to the plaintiff to prove the falsity of the agreement. (Ibid.) After the Court determines that an
agreement to
arbitrate exists, it then considers objections to its enforceability. (Ibid.)

The Court must grant a petition

to compel arbitration unless the defendant has waived the right to compel arbitration or if there are grounds to revoke the arbitration agreement. (Ibid.; Code Civ. Proc., § 1281.2.) Under California law and the Federal Arbitration Act (“FAA”), an arbitration agreement may be invalid based upon grounds applicable to any contract, including unconscionability, fraud, duress, and public policy. (Sanchez v. Western Pizza Enterprises, Inc. (2009) 172 Cal.App.4th 154, 165-166.)

A. Plaintiff’s Preliminary Arguments Lack Merit.

Plaintiff

argues that Defendant fails to meet its burden because “[o]n Page 4, Section II of its Memorandum of Points and Authorities, Defendant explicitly states that Plaintiff entered into an agreement requiring him to resolve his claims against ‘Forest Lawn’ through binding arbitration. Defendants’ brief, including its references to ‘Forest Lawn’, is verified under penalty of perjury.” (Opposition at p. 4.) This is merely a drafting error in the memorandum of points and authorities, and Defendant filed a Notice of Errata three days after filing the motion. There is no such discrepancy in the Arbitration Agreement itself.

Plaintiff

argues that Defendant failed to comply with Code of Civil Procedure section 430.41 and the Local Rules because it did not meaningfully meet and confer. (Opposition at pp. 5-6.) Plaintiff cites the requirement of meeting and conferring before filing a demurrer, not a motion to compel arbitration. Defendant filed a Declaration of Demurring Party in Support of Automatic Extension on May 22, 2026. Defendant ultimately decided to file a motion to compel arbitration rather than a demurrer. There is no further meet-and-confer requirement before filing a motion to compel arbitration. (See Code Civ. Proc., §§ 1281.2, 1281.7.)

Plaintiff

argues that Defendant engaged in “an Initial Bad-Faith Calendar Reservation Designed to Manufacture an Inequitable Delay” and “initially weaponized this statutory rule [staying proceedings upon filing the motion] by utilizing the online scheduling portal to secure an abusive, distant placeholder hearing date.” (Opposition at p. 6.) There is no indication of bad faith. Defendant’s original hearing date of April 13, 2027 is not unusual, given the Court’s growing calendar and limited hearing reservations. And as Plaintiff acknowledges, he was successful in advancing the hearing

date via his ex parte application.

Plaintiff

argues that Defendant waived its right to compel arbitration. (Opposition at pp. 7-8.) According to Plaintiff, “Defendant’s conduct here

is the textbook definition of such waiver.

Moving counsel deliberately leveraged professional extensions of time under

the explicit, affirmative pretense of preparing responsive preliminary pleadings—specifically

threatening a demurrer and a motion to strike under CCP § 430.41.” (Id. at p. 5.) Plaintiff contends that “Defendant weaponized

the court’s scheduling portal and executed a bad-faith pivot to a factually bankrupt

motion to compel arbitration,” and “[t]his calculated bait-and-switch operates as

an absolute waiver and forfeiture under California law.” (Ibid.) Not so.

Defendant filed this motion only two months after being served with the summons

and complaint. Defendant took no other actions

besides filing its Declaration of Demurring Party in Support of Automatic Extension

and then filing this motion.

B. Defendant Has Shown the Existence of An

Arbitration Agreement.

On

June 11, 2025, Plaintiff entered into and signed a Membership Agreement with Defendant. (Motion at p. 4; Pham Decl., Ex. 1.) The Membership Agreement included an Agreement

to Arbitrate. (Motion at pp. 4-5; Pham Decl.,

Ex. 1 at p. 2 [“Arbitration Agreement”].)

The parties agreed to arbitrate “ANY DISPUTE (OTHER THAN ONE FILED IN A COURT THAT IS LIMITED TO ADJUDICATING SMALL CLAIMS).”

Defendant

has satisfied its burden of showing the existence of an agreement to arbitrate that

covers Plaintiff’s claims.

C. Unconscionability Is Delegated to the

Arbitrator.

Plaintiff

argues that the Arbitration Agreement is unconscionable due to its adhesive nature

and lack of bilaterality. (Opposition at

pp. 8-9; see id. at p. 12.) Plaintiff

also argues that “pre-injury consumer adhesion contracts cannot be deployed to insulate

a corporate entity from statutory civil rights liabilities or hate crime allegations,” and “[c]ompelling private arbitration over a verified civil rights and hate crime record defeats the explicit legislative purpose of California’s consumer protection architecture.” (Id. at pp. 9-10; see id. at pp. 11-12.) Plaintiff contends that post-incident conduct by Defendant shows that “the foundational corporate relationship is built on bad faith gaslighting and administrative coercion, [so] contract formation has completely collapsed from inception, rendering the embedded arbitration clause an unenforceable nullity.” (Id. at p. 10.)

As

Defendant observes, Plaintiff’s unconscionability argument fails and, in any event, the Arbitration Agreement delegates that issue to the arbitrator. (Reply at p. 6.) Under California law, for a delegation clause to be effective, the language of the clause must be clear and unmistakable, and the delegation must not be revocable under state contract defenses such as fraud, duress, or unconscionability. (Aanderud v. Superior Court (2017) 13 Cal.App.5th 880, 892.) An unconscionability challenge must be specifically directed at the delegation provision, not the entire arbitration agreement. (Id. at p. 895.) Plaintiff does not challenge the delegation clause itself, which provides: “THE ARBITRATOR SHALL INTERPRET AND DETERMINE THE VALIDITY OF THE ARBITRATION PROVISION, INCLUDING UNCONSCIONABILITY.”

Defendant

has satisfied its burden of showing the existence of an agreement to arbitrate, and that agreement contains a delegation clause.

CONCLUSION

Defendant’s

motion to compel arbitration is GRANTED.

The entire action is STAYED pending the conclusion of the arbitration.

A

Status Conference re: Arbitration is scheduled for September 17, 2027 at 8:30 a.m. in Department 506 at Stanley Mosk Courthouse.

Five court days before, the parties are to file a joint report stating the name of their retained arbitrator and the status of arbitration.

Moving

party to give notice.

Parties

who intend to submit on this tentative must send an email to the Court at SMCDEPT506@lacourt.ca.gov indicating intention to submit. If all parties in the case submit on the tentative ruling, no appearances before the Court are required unless a companion hearing (for example, a Case Management Conference) is also on calendar.

Dated this 17th day of September 2026

Hon. Thomas D. Long

Judge of the Superior
Court